



Bill Number: S.B. 1244

Angius Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Concil

FLOOR AMENDMENT EXPLANATION

1. Specifies that the court must appoint an attorney to represent a patient when an application is filed to continue court-ordered treatment, if the patient does not already have an attorney.
2. Outlines annual reporting requirements for continuing court-ordered treatment and requires that a copy of the report be provided to the patient, patient's attorney and guardian.
3. Specifies that if the annual report supports the continuation of the order for treatment, the court may order that continuing treatment remain in place without a hearing.
4. Stipulates that if a patient objects to an order for continuing treatment, the treatment agency, rather than the patient, has the burden of proving by clear and convincing evidence that the order for continuing treatment is necessary.
5. Removes the specification that the process to convert a court order for treatment to an order for continuing treatment must follow the current process prescribed for applications to renew court-ordered treatment.
6. Grants a patient the right to request an independent evaluation on objection to an order for continuing court-ordered treatment.
7. Adds a delayed effective date of January 1, 2027.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1244
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{Orange lowercase underlining in double curly brackets} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-504.01, Arizona Revised Statutes, is amended
3 to read:

4 36-504.01. Guardians and agents; rights in proceedings

5 Guardians and agents who have decisional authority to make personal,
6 medical and treatment decisions for a patient pursuant to an order of the
7 court or pursuant to a validly executed mental health power of attorney in
8 which the principal has been found incapable of giving informed consent
9 have the following rights in any proceedings under this article regarding
10 involuntary treatment of the patient:

11 1. To be notified of any petition for treatment, motion for amended
12 court order, application for ~~continued court-ordered~~ RENEWAL OF THE COURT
13 ORDER FOR treatment, APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
14 COURT-ORDERED TREATMENT and request for judicial review.

15 2. If allowed by the court, to provide the court with the
16 guardian's or agent's position regarding the relief being sought in any of
17 the proceedings set forth in paragraph 1 of this section and to provide

1 the court with any relevant information to help the court make a
2 determination.

3 3. To provide relevant information to any agency providing
4 inpatient or outpatient screening, evaluation or treatment to the patient.

5 4. When appropriate, to participate in treatment and discharge
6 planning with the inpatient or outpatient treatment providers.

7 Sec. 2. Section 36-542, Arizona Revised Statutes, is amended to
8 read:

9 36-542. Discharge of patient at expiration of period ordered
10 by court; change to voluntary status; immunity

11 A. A patient WHO IS ordered by a court to undergo treatment
12 pursuant to this article shall be discharged from treatment at the
13 expiration of the period of treatment ordered unless one of the following
14 occurs:

15 1. The person accepts voluntary treatment at the mental health
16 treatment agency.

17 2. Before the discharge date, a new petition is filed in the county
18 in which the patient is being treated. The proceedings shall then be
19 governed by this article. The costs of the proceedings shall be a charge
20 against the county in which the patient resided or was found prior to
21 hospitalization.

22 3. An application for ~~continued court-ordered~~ RENEWAL OF THE COURT
23 ORDER FOR treatment is granted pursuant to section 36-543.

24 4. AN APPLICATION FOR CONVERSION TO AN ORDER FOR CONTINUING
25 COURT-ORDERED TREATMENT IS GRANTED PURSUANT TO SECTION 36-543.01.

26 B. If a patient to be discharged is under guardianship, the medical
27 director of the mental health treatment agency shall notify the guardian
28 ten days before discharge.

29 C. If a patient to be discharged is undergoing court-ordered
30 treatment as a result of a petition filed by a prosecutor pursuant to
31 section 13-4517 and the patient is being discharged because the medical
32 director OF THE MENTAL HEALTH TREATMENT AGENCY has decided not to file a
33 new petition for court-ordered evaluation or treatment or has decided not
34 to request the court to order that the previous order for treatment be
35 ~~continued~~ RENEWED, the patient may not be discharged or released from
36 treatment before compliance with section 36-541.01.

37 D. The medical director OF THE MENTAL HEALTH TREATMENT AGENCY is
38 not civilly liable for any acts committed by a released or discharged
39 patient if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY has
40 in good faith followed the requirements of this article.

41 Sec. 3. Section 36-543, Arizona Revised Statutes, is amended to
42 read:

43 36-543. Annual review; patients with a grave disability or a
44 persistent or acute disability; notice; renewal of
45 court order for treatment; rules; immunity

46 A. Within ninety days before the expiration of a court order for
47 treatment, the medical director of the mental health treatment agency
48 shall conduct an annual review of a patient who has been found to have a
49 grave disability or a persistent or acute disability and who is undergoing
50 court-ordered treatment to determine whether the ~~continuation~~ of

1 ~~court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment is appropriate and
2 to assess the needs of the patient for guardianship or conservatorship, or
3 both. The annual review shall consist of the mental health treatment and
4 clinical records contained in the patient's treatment file. The mental
5 health treatment agency shall keep a record of the annual review. If the
6 medical director OF THE MENTAL HEALTH TREATMENT AGENCY believes that a
7 ~~continuation of court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment is
8 appropriate, the medical director of the mental health treatment agency
9 shall appoint one or more psychiatrists to carry out a psychiatric
10 examination of the patient. In any proceeding conducted pursuant to this
11 section, a patient has the right to have an analysis of the patient's
12 mental condition by an independent evaluation pursuant to section 36-538.

13 B. Each examiner participating in the psychiatric examination of
14 the patient shall submit a report to the medical director of the mental
15 health treatment agency that includes the following:

16 1. The examiner's opinions as to whether the patient continues to
17 have a grave disability or a persistent or acute disability as the result
18 of a mental disorder and be in need of ~~continued court-ordered~~ RENEWAL OF
19 THE COURT ORDER FOR treatment. In evaluating the patient's need for
20 ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR treatment, the
21 examiner must consider, along with all other evidence, the patient's
22 history before and during the current period of court-ordered treatment,
23 the patient's compliance with recommended treatment and any other evidence
24 relevant to the patient's ability and willingness to follow recommended
25 treatment with or without a court order.

26 2. A statement as to whether suitable alternatives to court-ordered
27 treatment are available.

28 3. A statement as to whether voluntary treatment would be
29 appropriate.

30 4. A review of the patient's status as to guardianship or
31 conservatorship, or both, the adequacy of existing protections of the
32 patient and the continued need for guardianship or conservatorship, or
33 both. If the examiner concludes that the patient's needs in these areas
34 are not being adequately met, the examiner's report shall recommend that
35 the court order an investigation into the patient's needs.

36 5. If the patient has an existing guardian who does not have the
37 mental health powers authorized pursuant to section 14-5312.01, a
38 recommendation as to whether the additional mental health powers
39 authorized by section 14-5312.01 should be imposed on the existing
40 guardian and whether the patient's needs can be adequately addressed by a
41 guardian with mental health powers without the need for a court order for
42 treatment or whether the court order for treatment should continue
43 regardless of the additional mental health powers imposed on the guardian.

44 6. The results of any physical examination conducted during the
45 period of court-ordered treatment if relevant to the psychiatric condition
46 of the patient.

47 C. After conducting the annual review as prescribed in this
48 section, if the medical director OF THE MENTAL HEALTH TREATMENT AGENCY
49 believes that ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR
50 treatment is necessary or appropriate, not later than thirty days before

1 the expiration of the court order for treatment, the medical director OF
2 THE MENTAL HEALTH TREATMENT AGENCY shall file with the court an
3 application for ~~continued court-ordered~~ RENEWAL OF THE COURT ORDER FOR
4 treatment alleging the basis for the application and shall file
5 simultaneously with the application any psychiatric examination conducted
6 as part of the annual review. If the patient is under guardianship, the
7 medical director OF THE MENTAL HEALTH TREATMENT AGENCY shall mail a copy
8 of the application to the patient's guardian.

9 D. If an application for ~~continued court-ordered~~ RENEWAL OF THE
10 COURT ORDER FOR treatment is filed, all of the following apply:

11 1. If the patient does not have an attorney, the court shall
12 appoint an attorney to represent the patient.

13 2. Within ten days after appointment, an attorney appointed
14 pursuant to this subsection, to the extent possible, shall fulfill the
15 duties imposed pursuant to section 36-537, review the ~~medical director's~~
16 report OF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY and
17 the patient's medical records, interview any physician who prepared a
18 report on the annual review and file a response requesting a hearing or
19 submitting the matter to the court for a ruling based on the record
20 without a hearing.

21 3. If a hearing is not requested, the court shall rule on the
22 application or set the matter for hearing. If a hearing is requested, the
23 hearing shall be held within three weeks after the request for hearing is
24 filed. The hearing may be continued for good cause on motion of a party
25 or on the court's own motion, and the expiration of the current court
26 order for treatment may be extended until a ruling by the court on an
27 application filed pursuant to this subsection.

28 4. The patient's attorney must be present at all hearings and may
29 subpoena and cross-examine witnesses and present evidence. The patient
30 has the right to attend all hearings, but may choose not to attend a
31 hearing. The patient's attorney may waive the patient's presence after
32 speaking with the patient and confirming that the patient understands the
33 right to be present and does not desire to attend. If the patient is
34 unable to be present at the hearing for medical or psychiatric reasons and
35 the hearing cannot be conducted where the patient is being treated or
36 confined, or the patient cannot appear by another reasonably feasible
37 means, the court shall require clear and convincing evidence that the
38 patient is unable to be present at the hearing and on such a finding may
39 proceed with the hearing in the patient's absence.

40 5. The evidence presented by the applicant includes the testimony
41 of one or more witnesses acquainted with the patient during the period of
42 court-ordered treatment, which may be satisfied by a statement agreed on
43 by the parties, and the testimony of any physician who performed an annual
44 review of the patient, which may be satisfied by stipulating to the
45 admission of the examining physicians' written report prepared pursuant to
46 subsection B of this section. The court may waive the need for the
47 applicant to present the testimony of witnesses acquainted with the
48 patient as required by this subsection, if it finds that the need for a
49 ~~continued~~ RENEWAL OF THE court order for treatment has been established by

1 clear and convincing evidence from the other testimony and evidence
2 presented at the hearing.

3 6. At a hearing held pursuant to this subsection, the court, with
4 notice, may impose on an existing guardian additional powers pursuant to
5 section 14-5312.01. If the court finds that the patient's needs can be
6 adequately met by an existing guardian with the additional powers pursuant
7 to section 14-5312.01 and that a court order for treatment is not
8 necessary to ensure compliance with necessary treatment, the court may
9 terminate the court order for treatment or decline to issue an order
10 ~~continuing court-ordered~~ FOR RENEWAL OF THE COURT ORDER FOR treatment.
11 The court may also order an investigation into the need for guardianship
12 or conservatorship, or both, and may appoint a suitable person or agency
13 to conduct the investigation. The appointee may include a court-appointed
14 guardian ad litem, a court-appointed investigator pursuant to section
15 14-5308 or the public fiduciary if there is no person willing and
16 qualified to act in that capacity. The court shall give notice of the
17 appointment to the appointee within three days after the appointment. The
18 appointee shall submit the report of the investigation to the court within
19 twenty-one days. The report shall include recommendations as to who
20 should be guardian or conservator, or both, and the findings and reasons
21 for the recommendation. If the investigation and report so indicate, the
22 court may authorize an appropriate person to file a petition for
23 appointment of a guardian or conservator for the patient.

24 E. If a hearing is held pursuant to subsection D of this section,
25 the party seeking the renewal of the court order FOR TREATMENT must prove
26 all of the following by clear and convincing evidence:

27 1. The patient continues to have a mental disorder and, as a result
28 of that disorder, has either a persistent or acute disability or a grave
29 disability.

30 2. The patient is in need of ~~continued court-ordered~~ RENEWAL OF THE
31 COURT ORDER FOR treatment.

32 3. The patient is either unwilling or unable to accept treatment
33 voluntarily.

34 F. After a hearing held pursuant to subsection D of this section,
35 the court may order the patient to be released from court-ordered
36 treatment or to ~~undergo continued court-ordered~~ RENEW THE COURT ORDER FOR
37 treatment for a period not to exceed the time periods prescribed in
38 section 36-540, subsection D.

39 G. The director shall create and operate a program to ensure that
40 the examination and review of persons with grave disabilities or
41 persistent or acute disabilities under court order are carried out in an
42 effective and timely manner. The director shall adopt rules needed to
43 operate this program.

44 H. The medical director of the mental health treatment agency is
45 not civilly liable for any acts committed by the released patient if the
46 medical director OF THE MENTAL HEALTH TREATMENT AGENCY has in good faith
47 complied with the requirements of this article.

1 Sec. 4. Title 36, chapter 5, article 5, Arizona Revised Statutes,
2 is amended by adding section 36-543.01, to read:

3 36-543.01. Continuing court-ordered treatment; annual review;
4 order for conversion; annual report; burden of
5 proof

6 A. AFTER CONDUCTING A PATIENT'S SECOND CONSECUTIVE ANNUAL REVIEW AS
7 PRESCRIBED IN SECTION 36-543, SUBSECTION A, IF THE MEDICAL DIRECTOR OF THE
8 MENTAL HEALTH TREATMENT AGENCY BELIEVES THAT AN ORDER FOR CONTINUING
9 COURT-ORDERED TREATMENT IS APPROPRIATE, THE MEDICAL DIRECTOR OF THE MENTAL
10 HEALTH TREATMENT AGENCY SHALL APPOINT ~~{{AN APPROPRIATE MEDICAL~~
11 ~~PROFESSIONAL}}~~ {{ONE OR MORE PSYCHIATRISTS}} TO CARRY OUT A PSYCHIATRIC
12 EXAMINATION OF THE PATIENT AND SUBMIT A REPORT AS SET FORTH IN SECTION
13 36-543 AND SHALL REQUEST THE EXAMINER TO PROVIDE AN OPINION ABOUT THE
14 ISSUES SET FORTH IN SUBSECTION ~~{{D-}}~~ {{C}} OF THIS SECTION IN ADDITION TO
15 THE REPORTING REQUIREMENTS PRESCRIBED IN SECTION 36-543, SUBSECTION B.

16 B. AFTER RECEIVING THE REPORT PURSUANT TO SUBSECTION A OF THIS
17 SECTION, IF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY
18 BELIEVES THAT AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT IS
19 APPROPRIATE, AT LEAST THIRTY DAYS BEFORE THE EXPIRATION OF THE COURT ORDER
20 FOR TREATMENT, THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY
21 SHALL FILE WITH THE COURT AN APPLICATION FOR A CONVERSION TO AN ORDER FOR
22 CONTINUING COURT-ORDERED TREATMENT ALLEGING THE BASIS FOR THE APPLICATION
23 AND SHALL FILE SIMULTANEOUSLY WITH THE APPLICATION ~~{{ANY}}~~ {{THE}} REPORT
24 FROM ~~{{A}}~~ {{THE}} PSYCHIATRIC EXAMINATION PERFORMED ~~{{AS PART OF THE~~
25 ~~ANNUAL REVIEW CONDUCTED}}~~ PURSUANT TO ~~{{SECTION 36-543,}}~~ SUBSECTION A
26 {{OF THIS SECTION}}. {{IF THE PATIENT DOES NOT HAVE AN ATTORNEY, THE
27 COURT SHALL APPOINT AN ATTORNEY TO REPRESENT THE PATIENT.}} A COPY OF THE
28 APPLICATION SHALL BE PROVIDED TO THE PATIENT AND THE PATIENT'S ATTORNEY
29 AND, IF THE PATIENT IS UNDER GUARDIANSHIP, TO THE PATIENT'S GUARDIAN.

30 ~~{{C. SECTION 36-543, SUBSECTION D APPLIES TO PROCEEDINGS FOR~~
31 ~~CONVERSION TO AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT.}}~~

32 ~~{{D-}}~~ {{C-}} A COURT ORDER FOR TREATMENT MAY BE CONVERTED TO AN
33 ORDER FOR CONTINUING COURT-ORDERED TREATMENT AS SET FORTH IN THIS SECTION
34 IF THE COURT FINDS ALL THE FOLLOWING BY CLEAR AND CONVINCING EVIDENCE:

35 1. THE PATIENT CONTINUES TO HAVE A MENTAL DISORDER AND, AS A RESULT
36 OF THAT DISORDER, HAS EITHER A PERSISTENT OR ACUTE DISABILITY OR A GRAVE
37 DISABILITY.

38 2. THE PATIENT IS EITHER UNWILLING OR UNABLE TO ACCEPT TREATMENT
39 VOLUNTARILY.

40 3. WITHOUT AN ORDER FOR CONTINUING COURT-ORDERED TREATMENT THE
41 PATIENT'S CONDITION IS NOT LIKELY TO SIGNIFICANTLY IMPROVE AND THERE IS A
42 SUBSTANTIAL PROBABILITY THAT THE PATIENT WILL SUFFER SEVERE AND ABNORMAL
43 MENTAL, EMOTIONAL OR PHYSICAL HARM OR BE UNABLE TO PROVIDE FOR THE
44 PATIENT'S OWN BASIC PHYSICAL NEEDS.

45 ~~{{E-}}~~ {{D-}} IF THE APPLICATION FOR CONVERSION TO AN ORDER FOR
46 CONTINUING COURT-ORDERED TREATMENT IS DENIED, THE COURT MAY ORDER THE
47 PATIENT TO BE RELEASED FROM COURT-ORDERED TREATMENT OR, IF THE PROVISIONS
48 OF SECTION 36-543, SUBSECTION E HAVE BEEN MET, ORDER THAT THE COURT ORDER
49 FOR TREATMENT BE RENEWED FOR A PERIOD OF NOT MORE THAN THE TIME PERIODS
50 PRESCRIBED IN SECTION 36-540, SUBSECTION D.

1 ~~{{F.}}~~ {{E.}} IF THE APPLICATION FOR CONVERSION TO AN ORDER FOR
2 CONTINUING COURT-ORDERED TREATMENT IS GRANTED, THE COURT SHALL ORDER THE
3 PATIENT TO CONTINUE IN TREATMENT UNTIL THE ORDER FOR CONTINUING
4 COURT-ORDERED TREATMENT IS TERMINATED BY THE COURT. THE MAXIMUM PERIODS
5 FOR INPATIENT TREATMENT THAT A COURT MAY ORDER PURSUANT TO SECTION 36-540,
6 SUBSECTION F DO NOT APPLY TO AN ORDER FOR CONTINUING COURT-ORDERED
7 TREATMENT ISSUED PURSUANT TO THIS SECTION.

8 ~~{{G. THE ANNUAL REVIEW OF THE ORDER FOR CONTINUING COURT-ORDERED
9 TREATMENT SHALL OCCUR AT LEAST THIRTY DAYS BEFORE THE ANNIVERSARY DATE OF
10 THE ORDER FOR CONTINUING COURT-ORDERED TREATMENT. THE MEDICAL DIRECTOR OF
11 THE MENTAL HEALTH TREATMENT AGENCY SHALL FILE A WRITTEN ANNUAL REPORT TO
12 THE COURT THAT INCLUDES THE FOLLOWING:~~

13 ~~1. AN EXAMINATION REPORT BY A PSYCHIATRIST OR PSYCHOLOGIST}} [OR,
14 IN A COUNTY WITH A POPULATION OF LESS THAN FIVE HUNDRED THOUSAND PERSONS,
15 BY A PHYSICIAN, PHYSICIAN ASSISTANT OR NURSE PRACTITIONER EXPERIENCED IN
16 PSYCHIATRIC MATTERS] {{WHO HAS REVIEWED THE TREATMENT RECORDS OF THE
17 PATIENT AND WHO HAS CONDUCTED AN EXAMINATION OF THE PATIENT WITHIN NINETY
18 DAYS BEFORE THE ANNIVERSARY DATE OF THE ORDER FOR CONTINUING COURT-ORDERED
19 TREATMENT.~~

20 ~~2. A SUMMARY OF THE EXAMINER'S OBSERVATIONS OF THE PATIENT'S
21 PHYSICAL AND MENTAL CONDITION AND OF THE SERVICES PROVIDED OVER THE PERIOD
22 SINCE THE LAST ANNUAL REPORT.~~

23 ~~3. THE OPINION OF THE EXAMINER AS TO WHETHER AN ORDER FOR
24 CONTINUING COURT-ORDERED TREATMENT SHOULD REMAIN IN PLACE.}}~~

25 {{F. WITHIN NINETY DAYS BEFORE THE ANNIVERSARY DATE OF THE ORDER
26 FOR CONTINUING COURT-ORDERED TREATMENT, THE MEDICAL DIRECTOR OF THE
27 MENTAL HEALTH TREATMENT AGENCY SHALL CONDUCT AN ANNUAL REVIEW OF THE
28 PATIENT AND SHALL FILE A WRITTEN ANNUAL REPORT WITH THE COURT. THE ANNUAL
29 REPORT SHALL CONTAIN A SUMMARY OF THE TREATMENT PROVIDED TO THE PATIENT
30 SINCE THE LAST ANNUAL REVIEW AND THE PATIENT'S COMPLIANCE WITH THE
31 TREATMENT PROVIDED OR RECOMMENDED AND SHALL STATE THE OPINION OF THE
32 MEDICAL DIRECTOR WHETHER THE ORDER FOR CONTINUING COURT-ORDERED TREATMENT
33 SHOULD REMAIN IN EFFECT OR WHETHER COURT-ORDERED TREATMENT SHOULD BE
34 TERMINATED. A COPY OF THE ANNUAL REPORT SHALL BE PROVIDED TO THE PATIENT
35 AND THE PATIENT'S ATTORNEY AND, IF THE PATIENT IS UNDER GUARDIANSHIP, TO
36 THE PATIENT'S GUARDIAN. ON FILING THE ANNUAL REPORT, THE FOLLOWING APPLY:

37 1. IF THE ANNUAL REPORT STATES THAT IT IS THE OPINION OF THE
38 MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY THAT THE PATIENT'S
39 COURT-ORDERED TREATMENT SHOULD BE TERMINATED, THE ANNUAL REPORT SHALL
40 STATE THE BASIS FOR THAT OPINION, SHALL AFFIRM THAT IN REACHING THAT
41 OPINION THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY
42 CONSIDERED THE PATIENT'S ENTIRE HISTORY OF ENGAGEMENT IN AND COMPLIANCE
43 WITH TREATMENT ORDERED OR RECOMMENDED AND SHALL CONFIRM THAT IT IS THE
44 OPINION OF THE MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY THAT
45 THE PATIENT IS BOTH WILLING AND ABLE TO ENGAGE IN AND FOLLOW ANY
46 RECOMMENDED TREATMENT VOLUNTARILY. A COPY OF THE ANNUAL REPORT SHALL BE
47 PROVIDED TO THE PATIENT AND THE PATIENT'S ATTORNEY AND, IF THE PATIENT IS
48 UNDER GUARDIANSHIP, TO THE PATIENT'S GUARDIAN. THE GUARDIAN FOR THE
49 PATIENT HAS THE RIGHT TO REQUEST A HEARING TO DETERMINE WHETHER THE

1 STANDARD FOR RELEASE HAS BEEN MET AND TO REQUEST THAT AN INDEPENDENT
2 EVALUATION OF THE PATIENT BE PERFORMED.

3 2. IF THE ANNUAL REPORT STATES THAT IT IS THE OPINION OF THE
4 MEDICAL DIRECTOR OF THE MENTAL HEALTH TREATMENT AGENCY THAT THE PATIENT'S
5 COURT-ORDERED TREATMENT SHOULD REMAIN IN EFFECT, THE ANNUAL REPORT SHALL
6 INCLUDE A REPORT OF A PSYCHIATRIST WHO CONDUCTED AN EXAMINATION OF THE
7 PATIENT WITHIN NINETY DAYS BEFORE THE ANNIVERSARY DATE OF THE ORDER FOR
8 CONTINUING COURT-ORDERED TREATMENT THAT CONTAINS THE FOLLOWING:

9 (a) CONFIRMATION THAT THE PSYCHIATRIST REVIEWED THE TREATMENT
10 RECORDS OF THE PATIENT, INCLUDING THE SERVICES PROVIDED TO THE PATIENT
11 OVER THE PERIOD SINCE THE LAST ANNUAL REPORT.

12 (b) A SUMMARY OF THE PSYCHIATRIST'S OBSERVATIONS OF THE PATIENT'S
13 PHYSICAL AND MENTAL CONDITION.

14 (c) THE OPINION OF THE PSYCHIATRIST AS TO WHETHER AN ORDER FOR
15 CONTINUING COURT-ORDERED TREATMENT SHOULD REMAIN IN PLACE AND THE BASIS
16 FOR THAT OPINION.}}

17 {{H.}} {{3.}} IF THE ANNUAL REPORT SUPPORTS THE CONTINUATION OF
18 THE COURT ORDER FOR TREATMENT, THE COURT{{,. WITHOUT A HEARING.}} MAY ORDER
19 THAT THE ORDER FOR CONTINUING COURT-ORDERED TREATMENT REMAIN IN
20 PLACE. THE PATIENT MAY OBJECT TO THE ORDER FOR CONTINUING COURT-ORDERED
21 TREATMENT BY FILING A REQUEST FOR HEARING WITHIN TEN BUSINESS DAYS AFTER
22 THE ANNUAL REPORT IS FILED. THE COURT SHALL HOLD THIS HEARING WITHIN
23 THIRTY CALENDAR DAYS AFTER RECEIPT OF THE REQUEST. TREATMENT PURSUANT TO
24 THE EXISTING COURT ORDER SHALL CONTINUE PENDING THE COURT'S RULING ON THE
25 ISSUE. {{THE PATIENT HAS THE RIGHT TO REQUEST AN INDEPENDENT
26 EVALUATION.}} AT THE HEARING, THE {{PATIENT}} {{MENTAL HEALTH TREATMENT
27 AGENCY}} HAS THE BURDEN OF PROVING BY CLEAR AND CONVINCING EVIDENCE THAT
28 {{THE PATIENT NO LONGER MEETS THE CRITERIA FOR}} AN ORDER FOR CONTINUING
29 COURT-ORDERED TREATMENT PURSUANT TO THIS SECTION {{IS NECESSARY}}.

30 <<Sec. 5. Effective date

31 {{This act is effective from and after December 31, 2026.}}>>

32 Enroll and engross to conform

33 Amend title to conform

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